

मसौदे से संदर्भित है। अनेक लोक प्राधिकरण, एक लोक सम्पर्क अधिकारी के रूप में, नागरिकों को सलाह, मार्गदर्शन और मत उपलब्ध करवाते हैं। किन्तु यह पूर्णतः स्वैच्छिक है और आर.टी.आई. अधिनियम के अंतर्गत किसी बाध्यता के साथ इसे भ्रमित नहीं किया जाना चाहिए।”

3. इसे सभी संबंधितों के ध्यान में लाया जाए। (संख्या-1/18/2011-आई.आर. भारत सरकार नार्थ ब्लॉक, नई दिल्ली, दिनांक 16 सितम्बर 2011)

OFFICE MEMORANDUM

Subject : Disclosure of personal information under the RTI Act, 2005.

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The Central Information Commission in one of its decisions (copy enclosed) has held that information about the complaints made against an officer of the Government and any possible action the authorities might have taken on those complaints, qualifies as personal information within the meaning of provision of section 8(1)(j) of the RTI Act, 2005.

2. The Central Information Commission while deciding the said case has cited the decision of Supreme Court of India in the matter of Girish R. Deshpande vs. CIC and others (SLP (C) no. 27734/2012) in which it was held as under :-

"The performance of an employee/Officer in an organisation is primarily a matter between the employee and the employer and normally those aspects are governed by the service rules which fall under the expression 'personal information'. The disclosure of which has no relationship to any public activity or public interest. On the other hand. The disclosure of which could cause unwarranted incursion of the privacy of that individual. "the Supreme Court further held that such information could be disclosed only if it would serve a large public interest.

3. This may be brought to the notice of all concerned.

Encl : As above

(No. 11/2/2013-IR (Pt.) Government of India North Block, New Delhi, Dated the 14th August, 2013)
